



June 24, 2026

Ms. Vanessa Countryman
Secretary
U.S. Securities and Exchange Commission
100 F Street, N.E.
Washington, D.C. 20549-1090

Re: File No. S7-2026-15
SEC Request for Comment on Semiannual Reporting
May 5, 2026

Dear Ms. Countryman:

As Senior Vice President and Chief Financial Officer of Exxon Mobil Corporation, I appreciate the opportunity to comment on the Commission's proposed rule regarding semiannual reporting on new Form 10-S for domestic registrants. ExxonMobil supports this proposal and the Commission's broader efforts to modernize the disclosure framework in a manner that enhances efficiency, reduces unnecessary complexity, and eases regulatory burdens, while preserving robust investor protections. We believe the Commission's disclosure regime should be principles-based, scalable, and flexible, recognizing that a one-size-fits-all approach does not reflect the diversity of issuer profiles, business models, or investor needs across the public markets.

We believe the Commission's proposal appropriately acknowledges that the public disclosure ecosystem has evolved significantly since the onset of periodic reporting. Investors today access and consume information through a wide range of channels beyond periodic reports, including earnings releases furnished on Form 8-K, investor presentations, webcasts, and issuer websites. Based on feedback from our investors and others in the financial community, we observe that substantially more emphasis is placed on these timelier communications and broader avenues of information than on Form 10-Q itself. In this respect, the proposal reflects modern market practices and investor behavior, rather than legacy reporting conventions.

We agree that disclosures should focus on material information that is most relevant and useful to investor decision-making. The value of interim reporting lies in the quality, clarity, and relevance of the information provided, rather than frequency alone. Semiannual reporting, when considered alongside existing voluntary disclosures, Form 8-K requirements, and the requirements of Regulation FD, preserves the flow of material information to the market while reducing the time and cost burden associated with the

preparation and review of periodic reports that do not meaningfully enhance investor understanding.

ExxonMobil is supportive of the Commission's semiannual reporting proposal and appreciates its pragmatic approach in retaining the existing interim reporting framework. Maintaining the same underlying standards that govern current quarterly reporting will promote consistency, comparability, and operational efficiency for preparers and users. We believe it represents a thoughtful reassessment of long-standing reporting practices in the context of currently available information channels, market behavior, and investor expectations, without compromising long-standing and important investor protections. Rather than responding to the Commission's request for comment on a question-by-question basis, we structured our feedback below around the overarching themes that we believe are central to the success of this proposal.

Continuing Availability of Timely and Material Information to Investors

As prefaced above, we do not believe a move to semiannual reporting would result in a reduction of material or timely information available to investors because material quarterly information is disclosed independently of the Form 10-Qs. Feedback from our investors and others in the financial community indicates that they increasingly rely on earnings releases, webcasts, investor presentations, Form 8-K filings, and company investor relations websites, rather than Form 10-Q itself, as their primary sources of issuer information. Companies also routinely communicate with the market through a wide range of other voluntary channels, including public-facing reports and disclosures addressing comprehensive business and strategic matters. This broader, more dynamic disclosure ecosystem currently provides investors with continuous access to material developments. The proposed framework appropriately recognizes that the purpose of periodic reporting—maintaining reasonably current, publicly-available information—is now achieved through multiple channels that are more user-friendly and often more effective.

Importantly, this evolution in investor information consumption has not diminished market transparency, efficiency, or access to information for market participants, whether they are small or large investors. Existing regulations, particularly Regulation FD and Form 8-K filing requirements, provide a robust framework for the broad and timely dissemination of material information. Issuers are strongly incentivized to communicate material developments promptly to the public to maintain investor confidence and support efficient market valuation. We expect issuers will continue to evolve their disclosure practices to meet investor expectations and market demands, irrespective of periodic reporting frequency.

Accordingly, semiannual reporting would modernize the reporting framework without compromising investor protection or the quality of information available to the market, and better align disclosure requirements with how investors access, evaluate, and use information today. We agree the proposal is a thoughtful and measured approach that preserves a system designed to produce material, timely, and decision-useful disclosures to enable well-informed and sound investment decisions while reducing unnecessary compliance burdens and promoting efficiency for both companies and investors.

Optional, Not Mandatory, Semiannual Reporting to Provide Flexibility

We believe semiannual reporting should be optional rather than mandatory and should be available to all issuers. An optional framework appropriately recognizes that companies differ in size, maturity, industry, complexity, investor base, geographic footprint, and disclosure practices. Some issuers may determine that quarterly reporting on Form 10-Q remains preferable due to investor expectations, business cyclicality, capital markets considerations, or other operational factors. Others may determine that semiannual reporting on Form 10-S better balances their investor needs with reporting burdens. Allowing issuers to make this determination preserves flexibility and promotes market-based outcomes without imposing a one-size-fits-all framework. We feel that each company is in the best position to evaluate the efficiency benefits that ultimately accrue to shareholders from adopting a semiannual approach relative to the value of maintaining quarterly reporting.

As mandatory semiannual reporting does not allow companies to make this value assessment, it could produce unintended consequences, including forcing companies with diverse investor needs into a uniform approach that may be suboptimal. We therefore believe investor and issuer considerations, rather than regulatory mandate, should largely determine the cadence and format of interim reporting.

New Optional Form 8-K Item 8.02 (1Q/3Q Financial Statements) for Further Flexibility

We recommend that, in connection with a move toward optional semiannual reporting, the Commission adopt a new Item 8.02 for Form 8-K that would permit issuers to file (not furnish) first or third-quarter financial statements and related information on an optional, as-needed basis. This optional mechanism would further enhance flexibility while addressing potential concerns around timely financial transparency from both issuer and investor perspectives. It would also address many of the Commission's thoughtful questions about quarterly earnings releases and their treatment in a semiannual reporting regime, which we address in sections further below.

Unlike a full Form 10-Q, the proposed Item 8.02 should be carefully scoped to require only condensed consolidated financial statements and incremental, decision-useful updates that are material changes from the issuer's most recent Form 10-K or Form 10-S, rather than a comprehensive refresh of all quarterly disclosures required under GAAP. Eliminating or limiting repeat footnote disclosures and certain MD&A elements—such as routine liquidity discussions and segment disclosures—would meaningfully reduce preparer burden and disclosure volume, while preserving investor access to new, material information. Many of these recurring disclosures provide limited incremental insight on a quarterly cadence and are largely duplicative of annual reporting, yet they carry disproportionate cost and complexity. This approach is consistent with our view that as disclosure requirements have increased over the past several years, it has become more difficult for investors to focus on what is truly important. To avoid unintentionally triggering the full suite of ASC 270 interim reporting requirements or creating conflict with existing GAAP presentation and disclosure frameworks, the Commission could clarify that

financial statements filed under this Item are permitted to be presented on a simplified, updated basis, accompanied by a principles-based requirement to disclose only material changes or developments. The Item could also expressly distinguish these submissions from “complete interim financial statements” for GAAP purposes, thereby allowing issuers to tailor disclosures without implying full compliance with Form 10-Q content requirements. Structuring the submission as a “filed”, not furnished, Form 8-K item, consistent with the framework for Item 8.01 and other material event disclosures, would also allow incorporation by reference into Securities Act registration statements and the Exchange Act reporting record.

The proposed Item 8.02 would offer a pragmatic, market-responsive solution to potential concerns around semiannual reporting and is consistent with the Commission’s long-standing principles-based approach to disclosure, permitting issuers to respond to changes in their business or markets without regulatory friction. This proposal may also encourage more issuers to opt-in to the semiannual reporting framework, particularly during the early stages of adoption, by not unduly constraining reporting flexibility. Companies frequently encounter events—such as mergers, restructurings, credit rating changes, or market disruptions—that warrant near-term financial updates. The proposed Item 8.02 would enable issuers to have the option to provide decision-useful information when it may be most relevant, rather than deferring disclosure until the next Form 10-S or Form 10-K. At the same time, it could potentially accommodate contractual obligations, including debt covenants and indentures tied to quarterly reporting or Section 13 and 15(d) requirements of the Exchange Act—without requiring widespread amendments or workarounds of financing agreements, providing compliance certainty without full Form 10-Q preparation.

Overall, we believe the proposal strikes a practical balance between flexibility and investor protection. By coupling optional semiannual reporting with a clear pathway to disclose material financial updates through filed Item 8.02 reports, the proposal mitigates concerns about reduced visibility into material financial developments, information asymmetry between sophisticated and retail investors, and potential increases in cost of capital under a semiannual reporting regime. Further, the proposal advances the Commission’s efforts to modernize the periodic reporting architecture to recognize that a uniform quarterly reporting mandate does not suit the diversity of issuer profiles, industries, and investor bases, without compromising the furnished earnings release framework. Together, these measures would deliver meaningful cost savings, preserve investor protections, and modernize the disclosure system with a flexible, issuer-specific approach.

Sustained Comparability Across Periods and Peers

We do not believe semiannual reporting would materially impact investors’ ability to compare same-company or peer performance over time. If we elect semiannual reporting, we expect to continue providing quarterly financial disclosures through earnings releases furnished on Form 8-K, investor presentations, postings to the Investors section of our website, or, if adopted, through new Item 8.02 of Form 8-K, as appropriate. This allows us to satisfy investor demand, provide financial and operational updates, and address

significant developments and events affecting the business. Other issuers that choose semiannual reporting likely will follow a similar process to provide material information to the market. These disclosures, combined with annual and semiannual reports, should largely preserve comparability at both the company-specific and peer levels.

Treatment of Earnings Releases and Form 8-K Item 2.02

We support maintaining the current Item 2.02 framework that permits issuers to furnish earnings releases on Form 8-K and do not believe a transition to filed status is warranted. The Commission has long recognized an important and deliberate distinction between information that is furnished and information that is filed, and earnings announcements are a clear example of disclosures for which furnished treatment is appropriate. Through Item 2.02 of Form 8-K, the SEC expressly permits issuers to furnish earnings releases, reflecting the Commission's view that these communications serve a different purpose than formal periodic filings.

The Commission's furnished information framework promotes robust and candid disclosure. It appropriately recognizes that earnings releases are management communications intended to provide timely information to the market. By limiting liability exposure relative to filed documents, the framework encourages issuers to provide prompt disclosure, supplemental context, operational insights, and forward-looking information that investors value, but which might otherwise be constrained or omitted if earnings releases were required to be filed. This approach aligns with Regulation FD's objective of broad and timely dissemination of material information without discouraging informative communication.

Moreover, the furnished treatment reflects the practical reality that earnings releases often include a mix of GAAP financial information, non-GAAP measures, estimates, and forward-looking statements. Elevating these communications to filed status would increase legal exposure, lengthen preparation timelines, and expand internal and external review processes, potentially delaying disclosure and reducing the utility of the information to investors. These outcomes would undermine the intended efficiencies offered by semiannual reporting and are not aligned with the Commission's stated objectives.

In short, by permitting earnings announcements to be furnished rather than filed, the Commission has appropriately tailored the disclosure framework to the nature and purpose of these communications. Maintaining this distinction supports efficient, transparent markets while preserving investor protection and is consistent with the Commission's broader objectives of modernizing disclosure requirements and reducing unnecessary regulatory burden.

Incorporation by Reference Concerns

If the Commission were to require earnings releases to be filed on Form 8-K, we strongly recommend that such releases not be incorporated by reference into registration statements, Form 10-K, Form 10-Q, or the new Form 10-S semiannual report. While earnings releases are subject to disclosure controls and procedures, they are not

currently subject to internal control over financial reporting (ICFR). Requiring incorporation by reference would effectively force issuers to bring earnings release processes into ICFR scope, increasing cost and complexity, which are contrary to the proposal's stated objectives.

In addition, earnings releases typically include non-GAAP measures, preliminary estimates, forward-looking information, and operational metrics that are commonly used for investor communication but may not be appropriate or permissible in filed documents subject to stricter disclosure standards. For example, non-GAAP financial measures included in an earnings release often rely on adjustment methodologies and presentation flexibility that align with Regulation G and Item 2.02 of Form 8-K, but would face more restrictive treatment if incorporated into filed reports. Similarly, qualitative commentary provided during earnings calls or highlighted on company websites is designed to provide context rather than to meet the formal requirements of Commission filings.

The current distinctions among public disclosures made through company websites, earnings calls, furnished Form 8-Ks, and filed documents reflect differing liability frameworks, levels of formality, and control requirements, and these distinctions are generally well understood by issuers, investors, and other market participants. For instance, furnished Form 8-Ks are not subject to the same level of liability under the Exchange Act as filed reports, and website disclosures and earnings call materials operate under yet another set of expectations regarding completeness and precision. Altering these longstanding distinctions—by effectively elevating earnings releases to filed status or incorporating them by reference into periodic reports—could blur these boundaries, introduce interpretive uncertainty, and create confusion regarding applicable disclosure standards, liability exposure, and required levels of internal control.

Auditor Review of Financial Information in Earnings Releases

The Commission requested feedback on whether to require an auditor review of financial information in any first or third quarter earnings releases of an issuer that elects semiannual reporting. The Commission also asked if an issuer which elects semiannual reporting would retain its independent public accountant to perform a review of its financial statements at the end of each quarter.

In this context, we consider the financial statements to be the following five primary statements: consolidated statements of income, comprehensive income, balance sheet, cash flows, and changes in equity. We consider financial information in an earnings release to encompass information presented outside of the financial statements, even if derived from elements of the financial statements.

We support permitting issuers that elect semiannual reporting to determine, based on their facts and circumstances, whether to obtain an independent public accounting firm's review of first- or third-quarter financial statements included in earnings releases. Allowing issuer optionality in this area is consistent with the Commission's objective of reducing compliance burden while preserving investor protection through transparency.

Our independent public accounting firm does perform a review of our interim financial statements that are included in our Form 10-Q but does not audit or review our earnings releases and does not provide assurance on those communications. The firm's involvement is generally limited to reading the earnings release to consider whether it contains information that is materially inconsistent with the audited financial statements or information obtained during the audit. This limited involvement does not constitute a formal review or provide any level of assurance.

Earnings releases are management communications that summarize results and trends – they are not prepared or labeled as reviewed or audited financial statements. As discussed in the preceding sections, earnings releases typically communicate a broad spectrum of information, such as US-GAAP compliant financial information, non-GAAP measures, operational detail, projections and forecasts – including updates to such previously issued information – and other forward-looking statements. In addition to increasing a company's compliance cost, requiring an auditor review of financial information contained in these communications would significantly expand the scope of an auditor's responsibilities and likely necessitate a revision to the current assurance standards as promulgated by the Public Company Accounting Oversight Board. A review requirement would be misaligned with the current regulatory framework, under which financial information not filed with the Commission is not subject to auditor assurance.

As previously noted, while earnings releases are subject to disclosure controls and procedures, they are not typically within the scope of ICFR, and we do not believe ICFR should extend to the earnings release process. Expanding ICFR to encompass earnings releases would introduce unnecessary complexity by requiring additional controls, documentation, testing, and audit coordination around processes that are designed to be timely and responsive to market expectations. Such an expansion would reintroduce much of the burden that semiannual reporting is intended to alleviate, diminish the operational flexibility of the earnings release process, increase compliance costs, and create timing pressures that are not aligned with its purpose.

We support the long-standing requirement for an auditor's review of interim financial statements when an issuer files a Form 10-Q. Furthermore, if the Commission were to adopt our aforementioned proposal for the new optional Item 8.02 of Form 8-K, we believe a mandatory auditor review of the five primary financial statements is appropriate. In that circumstance, an auditor review remains an important component of the overall disclosure framework and provides investors with additional assurance regarding the reliability of interim financial statements prepared in accordance with Regulation S-X.

Access to Capital Markets and Financial Statement Staleness

Under the current framework, financial statement staleness is governed by Rule 3-12 of Regulation S-X, which deems financial statements "stale" once they exceed specified age thresholds, generally 130 days for accelerated filers and 135 days for other filers. This framework applies uniformly to registration statements, including those on Form S-3, and to subsequent offerings conducted under those registrations.

The Commission correctly identified that the existing framework, which is built around a quarterly reporting cadence on Form 10-Q filings to refresh incorporated financial information and prevent staleness, would render semiannual reporting impractical if left unrevised. We support the Commission's proposal to consolidate Rule 3-12 into proposed Rule 3-01 to synchronize the age of financial statement requirements with the cadence selected by the issuer.

However, while the proposed amendments resolve the threshold question of whether a registration statement can satisfy the regulatory age requirements, they do not address the separate constraint arising from PCAOB Auditing Standard AS 6101. PCAOB AS 6101 limits an auditor's ability to provide negative assurance in a comfort letter to underwriters beyond 135 days from the most recently audited or reviewed period. The restriction imposed by AS 6101 becomes particularly acute for issuers that rely on shelf registration to access the capital markets on demand. A shelf registration is designed to provide continuous, on-demand access to capital markets, but that access will likely be impaired absent an alignment of AS 6101 to the Commission's proposal of a semiannual reporting cadence. The Commission recognized that "an investor in a registrant that is a semiannual filer may not receive interim financial statements that are as current as would be required today." This gap, which may extend for several months between required semiannual filings, creates meaningful execution risk for shelf takedowns and could increase the cost of capital.

The Commission directly asks whether "reporting companies that elect to become semiannual filers [would] nonetheless decide to include quarterly or more recent financial information in Securities Act registration statements or prospectuses based on market practices or liability concerns." The Commission could address this concern through our proposal for a new Item 8.02 of Form 8-K to allow semiannual reporting issuers the option to file quarterly financial statements.

Further, the Commission should confirm that an issuer that voluntarily files interim financial information between required semiannual filings through an Item 8.02 of Form 8-K does not thereby alter its reporting obligations or create an expectation of continued voluntary disclosure at the same frequency. This safe harbor would preserve the voluntary nature of any supplemental disclosure while giving issuers flexibility to respond to dynamic market demands without legal risk and support capital markets formation.

Considerations Related to Indenture and Debt Agreements

Our existing indentures generally include two types of interim reporting provisions. First, certain indentures require the Company to furnish periodic reports in accordance with Sections 13 or 15(d) of the Exchange Act. These provisions are inherently dynamic and would continue to operate as intended under a revised SEC reporting framework, as they incorporate the Commission's reporting requirements as they evolve. As a result, these provisions would not be expected to require modification in connection with a transition to semiannual reporting.

Second, certain other indentures include more prescriptive covenants that require the delivery of interim financial statements within a specified number of days following the end of a fiscal period, often tied to a quarterly balance sheet date. These provisions would not automatically conform to a semiannual reporting model and, accordingly, would require an amendment to align with a revised reporting cadence. Updating these agreements would entail an administrative effort, including legal analysis, coordination with trustees, and, in some cases, execution of supplemental indentures or consents.

While we acknowledge that these revisions would involve time and cost, we believe such efforts are manageable and do not outweigh the broader benefits of permitting semiannual reporting. Further, if the Commission adopts our proposed Item 8.02, this may provide issuers and creditors with an alternative mechanism to satisfy specific periodic reporting requirements contained in the indentures without sacrificing progress on the semiannual initiative. In our view, the flexibility and efficiency gains associated with a semiannual reporting option would justify the necessary updates to legacy agreements, particularly given that the affected provisions represent a discrete and addressable subset of existing indenture requirements.

Advancing Semiannual Reporting Concurrent with a Path to Broader Modernization

We support the Commission's continued advancement of its proposal to permit semiannual reporting, while preserving flexibility for issuers to elect a reporting cadence that aligns with their business models, investor needs, and cost-benefit considerations.

At the same time, we encourage the Commission to undertake a broader, holistic review of existing Forms 10-K and 10-Q disclosure requirements to enhance relevance and reduce unnecessary complexity, and to extend these to the new Form 10-S if adopted. Modernization efforts should emphasize a principles-based, materiality-focused framework that reduces reliance on prescriptive line-item requirements, which often result in boilerplate disclosures rather than meaningful insight. This could include eliminating duplicative disclosures across sections—such as overlap between the Business description, Risk Factors, and MD&A—and refining MD&A to focus more clearly on material drivers of performance, known trends, and forward-looking considerations instead of repetitive, period-over-period narrative.

Additionally, the Commission could improve disclosure quality by removing or updating low-utility/outdated requirements that no longer provide meaningful value to investors, including detailed physical property listings, certain supplemental oil and gas schedules, and legacy tabular disclosures that are costly to maintain but rarely decision-useful. A thoughtful recalibration along these lines would sharpen the focus of periodic reporting on information that is material and decision-useful, while reducing compliance burden and improving readability. Taken together with a flexible approach to reporting frequency, these changes would better align the SEC's disclosure framework with the needs of modern capital markets and investors.

Given the scope and complexity of a full Form 10-K and 10-Q modernization effort, conditioning semiannual reporting on completion of broader reforms would delay

meaningful near-term progress. The semiannual proposal is already well-developed, has benefited from market engagement, and is positioned for timely implementation. Accordingly, we support a sequenced approach: proceed with adoption of the semiannual reporting option now, while continuing the Commission's ongoing review of Regulation S-K and undertaking further modernization initiatives on a parallel, but independent, timeline.

Filing Deadline Consistent with Current Form 10-Q

We believe the filing deadline for a semiannual report should align with the current Form 10-Q deadlines—45 days after period-end for non-accelerated filers and 40 days after period-end for accelerated and large accelerated filers. Consistent deadlines promote comparability, reduce implementation complexity, and avoid pressuring issuers to modify processes in ways that could compromise quality or internal controls while increasing cost.

Expected Reduction in Compliance Costs and Regulatory Burdens

We believe providing issuers with the option to elect semiannual reporting offers a meaningful opportunity to reduce compliance costs and allow for more efficient resource deployment. While the precise magnitude of these efficiencies will vary by issuer, we expect tangible reductions in the time and effort required from employees, management, the Board of Directors, and our independent registered public accounting firm in preparing, reviewing, and filing interim reports. Although certain foundational activities—such as maintaining data integrity, executing disclosure controls, and sustaining effective ICFR—will appropriately continue throughout the year, the overall cadence for required SEC reporting would be significantly more efficient. As a result, we expect a net positive impact, with reduced reporting frequency driving clearer prioritization, lower incremental effort, and more efficient governance processes.

More broadly, semiannual reporting would further enable management to focus on core business execution, long-term strategy, and shareholder value creation. Combined with the continued use of quarterly earnings releases furnished on Form 8-K and disclosures under Regulation FD, this approach can preserve timely and useful flow of information to investors while reducing duplicative or low-value narrative. With appropriate implementation and continued availability of key financial information, we believe issuers can achieve meaningful efficiency gains without compromising transparency, investor confidence, or access to capital markets.

Limited Impact on Insider Trading / Blackout Periods

We do not anticipate that semiannual reporting will result in meaningful changes or impacts on our insider trading policy and guidelines, trading windows, or blackout periods as these practices are structured around quarterly earnings releases rather than the timing of Form 10-Q filings. As previously noted, if we elect semiannual reporting, we expect to continue providing quarterly financial disclosures through earnings releases furnished on Form 8-K. Consequently, we do not expect semiannual reporting to increase insider trading risk or necessitate enhancements to our policies.

Transition Considerations

If the proposal is adopted, we believe no formal transition period is necessary, provided issuers have a full calendar quarter to prepare. For example, if a final rule is published and effective by September 30, an issuer should be able to determine—by the time it files its Form 10-K for that year—whether it will elect semiannual reporting in the following fiscal year. We also believe that such a timeline provides sufficient notice to investors of the issuer's intention.

We appreciate the opportunity to offer recommendations. ExxonMobil would also welcome the opportunity to address any questions the Commission may have about these comments or to provide additional information or context.

Sincerely,

By: 

Name: Neil A. Hansen

Title: Senior Vice President and
Chief Financial Officer